



"Managing 'Taiwan independence' is a key part of building strategic stability between China and US," the front-page *People's Daily* piece noted, framing pro-independence forces as a "common enemy" of Beijing and Washington. PTI



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EXPRESS INVESTIGATION PART I

14 times in 10 months, two Election Commissioners objected on record to steps taken by Commission — from keeping them in the dark to adding new voters and deleting names

Unprecedented rupture inside Election Commission: ECs call steps on new voters ‘unauthorised, illegal’; warn against voter database access being ‘centralised’ in Delhi, bypassing officials on ground

Ritika Chopra
New Delhi, Mumbai, Kolkata, Panaji, September 22

THE ELECTION Commission of India’s (ECI) Special Intensive Revision (SIR), which began in Bihar in June 2025, an otherwise routine clean-up of the rolls, has struck more than 13 crore names off the draft voter rolls in 30 States and Union Territories. This has put the Commission at the centre of intense public debate over its role in deciding who gets to vote — and who doesn’t.

An investigation by *The Indian Express* reveals that questions were raised on these very issues within the three-member Election Commission (EC) itself, time and again through much of this same period. By two of the three Election Commissioners, Sukhbir Singh Sandhu and Vivek Joshi, no less.

The national rollout of the SIR has been under the supervision of all three Commissioners. But Sandhu and Joshi have formally objected, on record, at least 14 times over the last 10 months — four times on a single day — to decisions taken and orders issued, they say, without their knowledge.

The stakes couldn’t be higher.

For, the objections relate to the core of the EC’s mandate: new voter registration, deletion and restoration of voters in the rolls; filing of appeals against orders restoring voters in the SIR process; and the custody, and security, of the entire electoral roll itself. All objections related to these were copied to Chief Election Commissioner Gyanesh Kumar, too. Some were sent to Deputy Election Commissioners under their watch.

In one such written objection, Sandhu complains that the EC acted against the written advice of two Commissioners and claims its action was “unauthorised and illegal.” Most recently, in a radical departure from the norm (*see adjacent report*), Joshi and Sandhu wrote separately to

»CONTINUED ON PAGE 2



CEC Gyanesh Kumar with Election Commissioners Sukhbir Singh Sandhu and Vivek Joshi at a press conference. All three Commissioners were appointed by the NDA government. ANIL SHARMA/FILE

Integrity of voter database: They even knocked on Cabinet Secretary’s door

Ritika Chopra & Damini Nath
New Delhi, Mumbai, Kolkata, Panaji, September 22

THE PROMISE was sweeping. On January 22, the Election Commission of India (ECI) launched ECINet, the tech backbone for almost a billion voters, bringing more than 40 of its apps and portals under one roof. It was built in strict accordance with the law, Chief Election Commissioner Gyanesh Kumar

TOMORROW: PART II FILING APPEALS IN WEST BENGAL; STRIKING DOWN NAMES IN GOA

said. It would “enhance transparency, credibility and public trust”, said Seema Khanna, the Director General of IT in the Commission.

Within months, this very

platform the CEC and his DG(IT) had called lawful and trustworthy was unravelling — state officers, prescribed by law to add or delete names and update records, were finding themselves shut out of the system, their access restricted by Khanna’s team in New Delhi.

This was a potential blow to the integrity of the elections itself. It prompted the two Election Commissioners

»CONTINUED ON PAGE 2

Illegal, unauthorised...(it’s) harassment of young: ECs object to change in Form 6

Ritika Chopra
New Delhi, September 22

THE CHANGE is “illegal,” “unauthorised,” it needs to be sent to the Government...it must be removed immediately so that young, first-time voters are not harassed. The warning by the two Election Commissioners couldn’t have been clearer — and yet it was ignored.

The change brought questions related to SIR into Form 6, the form new voters have to fill. It asked applicants to choose one of three statements:



Express report published July 12

whether their name appeared in the electoral roll during the last SIR held in the early 2000s, whether the name of a parent or grandparent appeared in that

»CONTINUED ON PAGE 2

What this rift reveals: Cloud over Commission’s conduct

Ritika Chopra
New Delhi, September 22

THERE HAS been dissent within the Election Commission earlier but never before have two Election Commissioners put on record objections that touch the heart of the electoral process itself: new voters, deleting

names, the IT system that secures the entire voters’ list itself.

E.

1. CONCENTRATION OF POWERS: You may be legally entitled to vote but now you may hit the “system hurdle”. Your Electoral Registration Officer may not be able to ensure your right. That’s

»CONTINUED ON PAGE 2

72nd NATIONAL FILM AWARDS CEREMONY NEAR THE STATUE OF UNITY IN GUJARAT

Do not endorse harmful products: President’s message to film actors

Points out that stars are those that give & spread light

Leena Misra
Ektanagar (Narmada), September 22

PRESIDENT DROUPADI Murmu called for greater participation of women on the jury as she presented the National Film Awards for 2024 across over 40 categories on Tuesday. The President also appealed to film stars to not endorse products that are harmful to health, saying, “Stars are those that give and spread light.” Celebrities from the film industry across the country attended the ceremony in Ektanagar, the tourist destination in Gujarat around the Statue of Unity in Narmada district. The grand event was held in a special dome erected against the backdrop of the 182-metre tall statue of Sardar Vallabhbhai Patel after whom the dam on the river Narmada is also named. President Murmu presented the awards to the winners in categories including feature and non-feature films, language films, biopics and documentaries. Veteran actor Anant Nag, who was accompanied by his wife Gayatri, received the country’s highest film honour, the Dadasaheb Phalke Award. Actor Yami Gautam and her filmmaker husband Aditya Dhar received the award for Best Feature Film for ‘Article 370’. Among the awarded films were one on the life of Veer Savarkar in which Randeep Hooda plays the main protagonist, and one on the making of the Statue of Unity. President Murmu noted that “many women were among the awardees”, and said, “I would wish that every regional jury ensures the partici-



(Clockwise from above) President Droupadi Murmu presents the Dadasaheb Phalke Award to veteran actor Anant Nag during the ceremony in Ektanagar on Tuesday; Yami Gautam receives award for best actress in *Article 370*; Mammootty and Kartik Aaryan bag the ‘Best Actor in a Leading Role’ award for *Bramayugam* and *Chandu Champion*, respectively. PTI, ANI

pation of women, I saw that many women got recognised for their films today; therefore, there should be more women on the jury. “In any field, only when the perspective of women is included does it create a vision for entire humanity.” She also said that successful film artists and the roles they played were emulated by “crores of children and youth”, and appealed to artists not to “endorse substances that are harmful to health”. “*Star wahi hai jo roshni deta*

hai, star wahi hai jo roshni phailaay,” the President said. The President also mentioned the first Santali film to have won an award in the 72nd edition of the Awards. ‘Angen’ (Invisible), has been directed by Ravi Raj Murmu, a filmmaker from Jharkhand. President Murmu, who is herself Santali, said, “With this film, not only a brilliant film gets a boost but also our cultural diversity and social inclusivity.” The short film was recognised for “transforming

folklore into cinematic poetry”. The President also appealed to those in the film industry to “give respect and social security” to the smallest labourers and artists contributing to the “creative economy”. This is the first time that the National Film Awards ceremony has been held outside Delhi. Union Minister for Railways and Information & Broadcasting Ashwini Vaishnaw said taking the film awards to destinations outside of the national capital was modelled after the G20,

which was held across states and Union Territories. “That was an example of the way in which our country’s rich and diverse cultural heritage can be showcased,” the Minister said. Vaishnaw invited states and Union territories to select important tourist destinations where the next ceremony could be hosted, suggesting that holding the ceremony outside the national capital is set to become a trend. “We have gathered at the world’s tallest statue, which gives a huge opportunity to the film world to come and experience this beautiful place, the heritage and the historic events that happened in our country when the British were thrown out,” he said. “I am giving a call to all states and Union Territories to select one of the most important tourist destinations in your state and Union Territory and tell us what improvements you will make in them, and then your destination will be selected where the NFA will be held. This way, we will be able to visit some of the most important tourist destinations in our country,” the Minister said, adding that the presence of film stars at these places would promote them. Among the other stars present at the ceremony were Mammootty (Best Actor for Malayalam film ‘Bramayugam’), Kartik Aaryan for Hindi film ‘Chandu Champion’, and Dhanush for the Tamil film ‘Raayan’. ‘Bhangaar’ won the award for the Best Non-Feature Film, and ‘Ramnami’ for Best Documentary. Chief Minister Bhupendra Patel invited filmmakers to come to Gujarat, and mentioned the only Gujarati film to get an award: ‘Maaran’ (Kill) directed by Ahmedabad-based Abhishek Jain. Governor Acharya Devvrat noted that films were a way to take the world out of “stress and depression”.

Centre doubles validity of green clearances for ports to 20 years

Nikhil Ghanekar
New Delhi, September 22

THE CENTRE has notified a major relaxation in the country’s environmental clearance process, doubling validity of clearance granted to ports and harbours to a minimum of 20 years, with room for two five-year extensions subject to conditions. The notification, published on Monday, amended the Environment Impact Assessment (EIA) notification 2006, which governs the country’s environmental clearance process. Environmental clearance for port and harbour projects can now be extended by five years beyond the 20-year period, subject to appraisal committees reviewing the adequacy of existing environmental safeguards. A further five-year extension may be granted in “deserving cases” if the project remains non-operational. The sectoral expert appraisal committee or state-level expert appraisal committee can recommend the second extension after examination and subject to environmental safeguards, the amendment stated. Under the EIA Notification, 2006, new projects in specified sectors require prior environmental clearance (EC). Project expansion, modernisation, capacity additions and product-mix changes beyond specified thresholds also require EC, based on environmental impact assessments, public hearings where applicable, and final appraisal by expert committees. The amendment follows requests from industry and the Ministry of Ports, Shipping and Waterways to rationalise the framework, under which environmental clearance for ports and harbours was valid for 10 years, with a one-year extension. Projects must thereafter seek fresh clearance. “The ministry has received a request to rationalise the validity period of the environmental clearances granted to Ports and Harbours, which is currently valid for an initial period of ten years, which may be extended for a further period of one year,” the notification stated.



ON SIDELINES OF UNGA

Global order is under stress, we need reformed multilateralism: Jaishankar

Says ‘4F crisis of fuel, food, finance and fertiliser’ needs guardrails

Divya A
New Delhi, September 22

UNDERLINING THAT the global order is “under stress” due to extreme competition and geopolitical tensions, External Affairs Minister S Jaishankar has called for “reformed multilateralism”. He has said that the “4F crisis of fuel, food, fertiliser and finance” needs “frameworks and guardrails”.

His comments come days after US President Donald Trump signed the Russia sanctions Bill, giving himself the authority to impose tariffs of up to 100% on countries, including India and China, that continue to buy Russian oil and gas.

Jaishankar was speaking at the first-ever Partners for Multilateralism, International Law, Peace & Prosperity (P4M) Summit held on the margins of the 81st session of the UN General Assembly (UNGA) on Monday. India co-sponsored the inaugural multilateralism summit at the UN, along with Australia, Barbados, Brazil, Canada, the European Union and Kenya.

“India is glad to join as a co-sponsor. We meet at a time when the global order is under



External Affairs Minister S Jaishankar and European Council President Antonio Costa during the P4M Summit in New York. PTI

stress,” he said, adding that for some decades now, the world has witnessed a steady rebalancing, which was a long-expected structural evolution.

“However, extreme competition, geopolitical tensions and actual conflicts have given this an entirely different character. If left unchecked, it would call into question the very spirit of international cooperation, and that is why it is so essential that multilateralism asserts itself strongly at this juncture,” he said.

Jaishankar told the summit that where ongoing conflicts are concerned, specific dimensions could be addressed even while nations strive for a broader peace. “The ‘4F’ crisis of fuel, food, fertiliser and finance cannot be left to itself. When new capabilities and concerns arise,

there is a very powerful case for frameworks and guardrails. Where there is a threat of choke-point dominance and disruption, de-risking and diversifying must be encouraged... And where there is a compelling cause or a powerful case, the like-minded must have the confidence to come together.”

Underlining that multilateralism would be best served when international law, rules and norms are scrupulously observed, he said, “For multilateralism to forge ahead, its advocacy and its practice must both be strengthened. Reformed multilateralism is thus essential. More participative deliberations and more transparent decision-making are both overdue.”

He also underlined that at stake are “very real issues”, in-

E. EXPLAINED

Focus on UNSC

The multilateralism summit comes at a time when the 15-nation UN Security Council remains deeply polarised, with sharp divisions among its five permanent, veto-wielding members — China, France, Russia, UK and the US. New Delhi has been pitching for a seat at the UNSC to reflect the realities of today’s world.

cluding the future of peace and international security, climate justice, countering terrorism and strengthening supply chains, adding that all depend on a “will to cooperate”.

Jaishankar was joined by the summit’s cosponsors, including President of the European Council Antonio Costa, President of Kenya William Ruto, Australian Prime Minister Anthony Albanese and Barbados Prime Minister Mia Mottley.

Meanwhile, Jaishankar also participated in the first foreign ministers’ meeting of India with the four-member Visegrad group of Central European countries, calling it a “new historic occasion”. The Visegrad Group (V4) is a cultural and political alliance of the Czech Republic, Hungary, Poland and

Slovakia that aims at advancing co-operation in military, economic, cultural and energy affairs.

At their first meeting, India and the four-member group agreed to step up political, economic and defence cooperation. The group backed India’s inclusion as a permanent member of the UNSC, with Slovakia’s Foreign Minister Juraj Blazar saying India “must be at the table” as a permanent member. Jaishankar also held several bilaterals — including with his counterparts from Ukraine, France, Moldova and Hungary.

Jaishankar’s engagements on Monday commenced with a meeting with French Foreign Minister Jean-Noel Barrot. “Regional and global issues, specifically the Ukraine and Gulf crisis were discussed. Also exchanged views on multilateral issues, including the reform of the UN Security Council,” he wrote on X.

Ukraine’s Minister of Foreign Affairs Andrii Sybiha, after meeting Jaishankar, said they discussed peace efforts, bilateral cooperation and international developments. “Wespoke about the situation in the Black Sea and its market implications. Restoring freedom of navigation is critical for global food security. Ukraine is ready to play a constructive role and we value India’s engagement,” he said.

On September 26, Jaishankar will address world leaders at the General Debate from the UNGA podium.

Karnataka wants Kasturirangan report reviewed

Express News Service
Bengaluru, September 22

THE KARNATAKA Assembly on Tuesday passed a resolution rejecting the Kasturirangan Report, which outlines conservation pathways for the Western Ghats, in its present form. It has also sought a review of the Report’s seventh draft, which lists 20,668 sq km across 1,449 villages in 10 districts as ecologically sensitive areas.

The decision came on Day 2 of a special session convened to discuss the Report and the prevailing drought situation in the state. Speaking at the Assembly, CM D K Shivakumar said that several legislators have alleged that the report was based merely on satellite data and was “unscientific”. To assess the true extent of the forests, ground truthing and physical survey are essential, he said.

Taking cue from Kerala, Karnataka decided to form a high-level panel to monitor the survey. It is to be headed by a retired SC judge. An all-party delegation to the Centre will also meet PM Modi and Union Forest Minister Bhupender Yadav to discuss the issue.

Bangladesh Foreign Secy Asad Alam Siam set to be next High Commissioner to India

Divya A
New Delhi, September 22

BANGLADESH FOREIGN Secretary Asad Alam Siam, who has earlier served as Dhaka’s envoy to Washington, is set to be the next high commissioner to New Delhi, sources said on Tuesday. The official procedure between New Delhi and Dhaka in this regard is underway.



Bangladesh Foreign Secretary Asad Alam Siam

ent dispensation in Dhaka, helmed by BNP’s (Bangladesh Nationalist Party) Tarique Rahman.

Siam’s appointment has taken place against the backdrop of negotiations between New Delhi and Dhaka for a possible India visit by Rahman sometime in November — his first bilateral visit here since being elected the Bangladesh Prime Minister in February this year.

Earlier, India had extended an invitation to Rahman as the Chair of the (BIMSTEC Bengal Initiative for Multi-Sectoral Technical and Economic Cooperation) grouping, to attend an outreach session at the recent BRICS Summit. However, the visit could not take place over tough exchanges that broke out after Hasina had held a virtual press interaction on August 5.

In April this year, India had appointed former Union Minister Dinesh Trivedi, a veteran politician from West Bengal, as India’s High Commissioner to Bangladesh. Both the sides are making efforts to reset bilateral ties — especially in the wake of demands for the extradition of Hasina, who has been in Delhi since August 2024 after being ousted following widespread protests in Bangladesh.



1986 ruling holds, can’t penalise for not singing: SC at Vande Mataram hearing

Vocalist Krishna’s lawyer Muralidhar protests SG’s remark on ‘Naxalite’s ideas’

Ananthakrishnan G
New Delhi, September 22

HEARING A PETITION by Carnatic vocalist T M Krishna who has challenged the law mandating the singing of all six stanzas of the *Vande Mataram*, the Supreme Court, while reminding the Centre Tuesday about its 1986 ruling on an individual’s right not to sing the national anthem, said it was up to “a conscientious objector not to recite one or all stanzas of the national song” and the person cannot be subjected to “criminal consequences”.

It said it will examine whether refusal to sing the *Vande Mataram* could have penal consequences.

The hearing before a three-judge bench headed by Chief Justice of India Surya Kant also saw a heated exchange between Solicitor General Tushar Mehta and Senior Advocate and former judge S Muralidhar, appearing for Krishna.

Objecting to the challenge, Mehta said “lawmaking cannot be as per Naxalite’s ideas”. Muralidhar protested and asked Mehta to withdraw the remark, but he did not. The bench, also comprising Justice Joymalya Bagchi and Justice V Mohana, said it had “not taken note” of the comment, restricting itself to “the Constitutional issue” before it.

Krishna’s plea said the guideline on singing of all six stanzas of *Vande Mataram* at official functions violates the constitutional principle of secularism because the last four stanzas contain explicit Hindu references.

Justice Bagchi said, “The national song expressing homage to a particular God or form of God would not perhaps impact secularism, but your point whether a conscientious objector can be subjected to penal consequences... may require examination.”

He said the law as it stands



T M Krishna

was laid down in its ruling on Bijoe Emmanuel and Others vs State of Kerala and Others. In the 1986 case, the Supreme Court ruled that expelling students, who belonged to Jehovah’s Witnesses, for refusing to sing the national anthem, while standing respectfully in silence, violated their fundamental rights.

“We would expect that the law of the land, as declared by this Court in Bijoe Emmanuel, will govern the Act. What is the national song is not in dispute. The declaration of law in Bijoe Emmanuel is not yet questioned,” Justice Bagchi said.

Muralidhar said, “What they have done is, as far as

amending the Act is concerned, they have introduced the expression national song, but the Act does not define what a national song is. It is a serious lacuna in the Act and it can be misused because they have introduced this office memorandum which is not even gazetted. I don’t know under what provision; they don’t even cite any provision.”

The Centre has amended Section 3 of the Prevention of Insults to National Honour Act, 1971, extending the same legal protection to *Vande Mataram* as Jana Gana Mana.

Mehta questioned the petitioner’s submissions and said, “Secularism will never be this narrow.”

Muralidhar said, “A penal statute cannot be in the realm of vagueness. You do not define what a national song is in the statute and you make it a punishable offence.”

Justice Bagchi said that “by custom and usage, the national song has always been understood as *Vande Mataram*”.

“But only two stanzas,” Muralidhar said. “For the first time after 80 years, they are trying to tell us it’s not two stanzas. This

is why when you use the term national, there has to be some building of a public opinion. It has to be by consensus. You can’t thrust it and you cannot have penal consequences. That is what is most worrying.”

Justice Bagchi said the extent of penal consequences “requires examination”.

Mehta said, “Let’s not drag national song in this sensationalism... Every officer says Jai Hind, but Jai Hind is not mentioned in the Constitution.” Urging the bench not to issue notice, he said it will only “create a sensation which appears to be the object”.

Justice Bagchi said, “Mr. Solicitor, we are not inclined to issue any notice to create any sensation. But we would expect that the law of the land, as declared by this Court in Bijoe Emmanuel, will govern the Act... What is the national song is not in dispute... The declaration of law in Bijoe Emmanuel has still not yet been questioned... It is for the democratically elected state to decide and give aspiration to the nation as to what is the national song, two stanzas or four stanzas. But nobody who feels an infraction

of Article 25, 26 rights or a conscientious objector would be subjected to (penal consequences).”

“It’s not the remit of the Court to second guess what is the national sentiments and aspirations associated with *Vande Mataram*. It is for the state... It is for a conscientious objector not to recite one or all stanzas of the national song, and (state is) not going to subject him to criminal consequences,” he said.

Mehta said, “Lawmaking is as per the Constitution... Lawmaking cannot be as per Naxalite’s ideas.”

Muralidhar protested: “He will withdraw the expression he used just now. This is going live. I do not want this expression from a Solicitor General of India going live. I strongly object.”

A heated exchange followed and Justice Bagchi said it was “unnecessary tension and emotion”. Muralidhar said, “Why is the law officer using this kind of expression? This doesn’t behove a law officer.”

The CJI said the bench was confining itself to examining the legal issue. Mehta was asked to submit a counter-affidavit in two weeks.

Starting this week, IAF to host second edition of multinational air exercise Tarang Shakti

Amrita Nayak Dutta
New Delhi, September 22

THE INDIAN Air Force (IAF) will host the second edition of its largest-ever multinational air exercise, Tarang Shakti-26, beginning later this week in Jodhpur. Around 40 countries are expected to participate in the exercise, which will bring together a range of advanced combat aircraft, including US F-35s, French Rafales and UAE F-16s, along with other aerial assets, for joint aerial operations, tactical training and interoperability drills. The exercise, to be held between September 26 and October 12 at Air Force Station, Jodhpur, and adjoining airbases will see participation from eight forces — India, Australia, Bangladesh, France, the US, Germany, Sri Lanka and UAE. Thirty-two countries will attend the event as observers. Around 10 Air Chiefs or equivalents are likely to attend the exercise. The maiden edition of the exercise took place in August-September 2024 in two phases. India's Rafale, Mirage-2000, Jaguar, Tejas, MiG-29, Su-30 MKI will participate in the exercise, along with the US's F-35, France's Rafale, the UAE's F-16 and Bangladesh's C-130J, besides other air assets. Explaining the criticality of the exercise, Vice-Chief of Air Staff Air Marshal Ashutosh Dixit told media persons on Tuesday that Tarang Shakti has changed the earlier approach of having an operational engagement with foreign air forces largely through bilateral exercises. Talking about the first edition of the exercise, when 11 countries participated with their air assets and covered a wide canvas of air operations, he said it was an important transition from exercises primarily being bilateral to planning, operating and integrating with multiple air forces simultaneously for the IAF. "So Tarang Shakti-26 is the next logical step," he said. The exercise aims to analyse tactical employment philosophy against modern Air-to-Air



Vice-Chief of the Air Staff Air Marshal Ashutosh Dixit addresses a press conference in the Capital on Tuesday. PTI

and Surface-to-Air weapons, to enhance interoperability among the participating forces and to identify best practices in operations. It will involve Beyond Visual Range and within Visual Range combat missions, air mobility operations and dynamic targeting, air-to-air refuelling missions and combat search and rescue operations. Air Marshal Dixit emphasised that as world changes rapidly and nature of warfare evolves, recent conflicts have highlighted the critical importance of precision, integrated air defence, unmanned systems, information dominance, space-based capabilities and the ability to integrate these elements into multi-domain operations. "Operation Sindoor has reinforced many of these realities for us. It demonstrated the importance of intelligence-led operations, precision, integrated air and missile defence, counter-UAS, and jointness across domains." "We do not conduct Tarang Shakti to demonstrate what we already know. We conduct it to discover what we still need to learn. Our operational experience, including Operation Sindoor, gives us lessons," he said adding: "Our partners bring their own operational experience. Bringing these together in a realistic training environment allows us to test assumptions, challenge procedures, understand different methods of employing air power and improve interoperability."

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TECH

Soaring demand for AI chips: What ‘supercycle’ means



EXPERT EXPLAINS

SHRUTI MITTAL

RESEARCH ANALYST, CARNEGIE INDIA

SEMICON INDIA, the flagship conference of the India Semiconductor Mission or ISM (under the IT Ministry), was held in New Delhi last week. It came amid exceptional global demand for semiconductors, or chips, driven by artificial intelligence (AI) and the infrastructure it requires. Some call this a semiconductor “supercycle” — a multi-year period of investment and growth thanks to a fundamental tech shift that alters the underlying structure of demand. It was seen with computers in the 1990s, and smartphones in the 2010s.

What is driving the chip boom?

Data centres are generating a large share of the demand. These physical facilities house equipment to store and process digital data (think servers and computers). AI data centres have the specialised infrastructure needed to support AI technology.

One such element is the AI chip or accelerator that undertakes the massive calculations needed to run AI models. These processors must also receive data rapidly — something traditional memory hardware struggles with because of its distance from the processor. High-bandwidth memory (HBM) chips instead stack layers of a computer’s working memory close to the processor, allowing large volumes of data to move rapidly between the memory and processor. Processors and memory stacks are combined using highly advanced packaging techniques.

The HBM market has three big players: South Korea’s SK Hynix and Samsung, and Micron in the US.

How is demand being secured?

Memory manufacturers traditionally relied on consumer sales, but the AI buildout is shifting the market towards business-to-business sales. According to S&P Global data, Microsoft, Amazon, Google, and Meta plan to spend nearly \$635 billion on AI infrastructure in 2026 alone, including data centres. Chipmakers are, in turn, entering into long-term take-or-pay agreements, where customers must buy the agreed chips regardless of their current demand or pay hefty penalties. Such contracts may make demand more predictable, but AI infrastructure spending remains concentrated among a few companies, and the fortunes of the industry will ultimately depend on the revenue AI services actually generate.

Where does India fit?

Under ISM 1.0, India approved 12 semiconductor projects and some packaging facilities began production. India does not produce chips, but has focused on establishing manufacturing capacity in assembly, testing, and packaging. For instance, Micron’s Sanand facility in Gujarat will process imported wafers used for chipmaking.

So far, India is not capturing profits from advanced chips. A parliamentary reply in July said demand for AI servers and data centres was tightening memory supplies and raising prices. In capital markets, too, some foreign investment with withdrawals from Indian markets in 2026 have been linked to interest in the semiconductor-heavy markets of Taiwan and South Korea. Launched in February, ISM 2.0 aims to build on the existing base, with its packaging scheme offering financial support. Another scheme will support R&D in chiplet technologies. Conventional chips are made using a single piece of silicon. Chiplets combine smaller, specialised chips to lower costs and waste.

Chip design offers another entry point, as nearly a fifth of the global chip workforce is based in India. Under the design-linked incentive scheme, startup Netrasemi is developing edge-AI processors for cameras and drones. These processors perform AI computations on the device instead of sending data to the cloud, allowing faster responses and reducing the need for data transmission over the internet. Germany’s Infineon also recently acquired the Bangalore-based fabless company (one that designs and sells chips) C2I, which may illustrate another part of an emerging value chain.

• HISTORY

Secular, religious, non-religious: How Constituent Assembly debated UCC

Jatin Anand
New Delhi, September 22

ARTICLE 44 of the Constitution, part of the Directive Principles of State Policy, says: “The State shall endeavour to secure for the citizens a uniform civil code throughout the territory of India.” Directive Principles guide the State but are not enforceable by courts. The Constituent Assembly placed the UCC there after a long and spirited debate on November 23, 1948, when it took up what was then draft Article 35.

Against the UCC

STATE ‘TYRANNY’: Mohammad Ismail Khan, the United Provinces Member from the Muslim League, argued it was unnecessary “to compel people to give up their personal law” with the objective to “secure harmony through uniformity”.

B Pocker, Madras Member from the Muslim League, said “a guarantee” of the liberty to follow personal laws was available even during the British rule. “...and let it not

be taken that I am only voicing forth the feelings of the Mussalmans. In saying this, I am voicing forth the feelings of ever so many sections in this country who feel that it would be really tyrannous to interfere with the religious practices, and with the religious laws, by which they are governed now,” he said.

ARTICLE 19: Naziruddin Ahmad, Member from West Bengal representing the Muslim League, argued that interfering with personal laws clashed with Article 19 of the Draft Constitution, which provided for freedom of conscience and the right freely to profess, practise and propagate religion.

Aspects of the British Civil Procedure Code, Ahmad said, had already “interfered with our personal laws and very rightly so”, but during the 175 years of British rule, they “did not interfere with certain fundamental personal laws.” What the British in 175 years, he said, “failed to do or was afraid to do, what the Muslims in the course of 500 years refrained from doing, we should not give power to the State to do all at once”.

• LEGAL

How SC has strengthened safeguards around re-arrest



AMAAL SHEIKH

THE SUPREME Court has strengthened the Constitutional safeguards governing arrest, holding that an accused released for violation of the fundamental right to be informed of the grounds of arrest is not released on bail, but from an “illegal and unconstitutional detention”.

A bench of Justices Ujjal Bhuyan and Atul S Chandurkar held on Monday that the safeguards under Article 22(1) are “fundamental principles which are required to be followed” whenever a person’s liberty is curtailed.

The court laid down a procedure requiring judicial approval before investigating agencies can arrest such a person again and held that High Courts may award compensation “as part of the public law remedy in a case of violation of Article 22(2) of the Constitution, with liberty to the accused to avail his remedy under the private civil law.”

The bench was hearing an appeal filed by an accused in a POC SO case in Punjab in May. The ruling builds on a line of judgments that have progressively strengthened the rights of arrested persons, particularly the requirement that they be informed, in writing, of the grounds of their arrest.

The legal framework

The case turns on the interplay between the right to life under Article 21 and the protection against arrest and detention under Article 22. Article 22(1) requires police to inform an arrested person of the grounds of arrest, and Article 22(2) requires production before a magistrate within 24 hours.

The question of whether an accused must be given a written copy of the grounds of arrest came up before the SC in *Pankaj Bansal v. Union of India* (2023). The case turned on Section 19 of the Prevention of Money Laundering Act, which says that a person must be informed “of the grounds of such arrest”, but does not spell out how that information is to be conveyed.

The court noted that Article 22(1) of the Constitution guarantees an arrested person

Written grounds for arrest: SC’s evolving jurisprudence

Article 22 is a fundamental right under the Constitution that provides for an accused to be produced before a magistrate within 24 hours of arrest, to get legal representation — and to be informed about the grounds of arrest.

The question of whether an accused must be given a written copy of the grounds of arrest first arose in ‘Pankaj Bansal v Union of India’ (2023), where the court held a written copy must be furnished “as a matter of course and without exception”.

That position was diluted in ‘Ram Kishor Arora v Directorate of Enforcement’, which held that ‘Pankaj Bansal’ would apply only prospectively.

The court in ‘Prabir Purkayastha v State (NCT of Delhi)’ in 2024 reaffirmed that an arrested person must be provided the grounds of arrest in writing at the earliest.

The Supreme Court finally settled the position in 2025, in ‘Mihir Rajesh Shah v State of Maharashtra’, holding that grounds of arrest must be communicated in writing “in the language he/she understands”, and that non-compliance would render “the arrest and subsequent remand ... illegal”.

It allowed grounds to be conveyed orally in exceptional cases, provided a written copy followed within a reasonable time, at least two hours before the accused was produced for remand.



the right to know why they are being arrested. It said that this safeguard would mean little if the grounds were merely read out and not handed over in writing. The Court said a written copy of the grounds of arrest must be furnished to the accused “as a matter of course and without exception”.

That position was watered down in *Ram Kishor Arora v. Directorate of Enforcement* (2023); the Court held that the *Pankaj Bansal* ruling would apply prospectively. Since the arrest predated that judgement, the court found that informing the accused of the grounds of arrest and allowing him to read them was sufficient compliance with PMLA Section 19, even though no copy was furnished to him.

However, the SC in 2025 settled the position in *Mihir Rajesh Shah v. State of Maharashtra*, where it held that the constitutional requirement of communicating the grounds of arrest is mandatory to arrests under all statutes. The SC said that “the grounds of arrest must be communicated in writing to the arrestee in the language he/she understands,” and that non-compliance would render “the arrest and subsequent remand ... illegal.” It allowed grounds to be conveyed orally in exceptional cases, provided a written copy followed within a reasonable time, at least two hours before the accused is produced for remand.

Senior Advocate Nitya Ramakrishnan told *The Indian Express* that the require-

Strict guidelines

The court laid down strict guidelines for re-arresting a person if they were earlier released for not being provided grounds of arrest.

• In such cases, the bench said, the authorities should provide the accused with written grounds of arrest, seek magistrate’s nod, and transfer the probe to a different officer.

ment of furnishing written grounds of arrest is especially important in serious offences, where securing bail is often difficult. Referring to earlier judgments such as *Pankaj Bansal* and *Prabir Purkayastha*, she said the courts had recognised that the safeguard assumes significance in cases where an accused’s ability to challenge arrest or oppose remand may otherwise be constrained. “The significance of its application to serious offences was not only recognised, but reiterated and reemphasised with greater rigour,” she said.

“The grounds of arrest under Article 22 were not considered the ground for release,” Senior Advocate Sidharth Luthra told *The Indian Express*. “It was not given that high and an appropriate stature. Later on, through SC decisions, it was sought to be given some content. Then there has been dilution, then an attempted reconsideration of its standards.”

What the court held

Monday’s ruling builds on *Mihir Rajesh Shah*. It held that any violation of Article 22(1) or 22(2) invalidates the arrest itself. It said: “Any breach or non-compliance would entail immediate release of the arrested person because such arrest is unconstitutional. We cannot tinker with the most important safeguards provided under Article 22.”

The State had argued that the seriousness of the offence meant Article 22(2)

• GLOBAL

Evolution of Houthis: Local movement to Red Sea power

Moinuddin Ahmad
New Delhi, September 22

THE RAPID advances made by the Yemeni armed group Houthi along the Red Sea coast and around the Bab el-Mandeb Strait have left Saudi Arabia’s oil exports and shipping exposed in the critical sea lane. This comes after Iran’s effective closure of the Strait of Hormuz since the war in West Asia broke out in February.

Origins as localised group

Ansar Allah’s journey began in the 1990s as a Zaidi Shia religious and cultural revivalist movement against the alleged neglect the community faced at the hands of the Sunni rulers, who came to power in 1962 after a revolt against the Zaidi Imamate that ruled Yemen for over a thousand years. The Zaidi Shias, who felt marginalised amid the rapid expansion of Saudi-funded Sunni proselytisation, looked up to their leaders, including Hussein Badreddin al-Houthi, who established a group called al-Shabab al-Mu’min (The Believing Youth) in 1992 aimed at preserving cultural identity.

By the early 2000s, the movement began political activism against certain policies of Yemeni President Ali Abdullah Saleh and the 2003 US invasion of Iraq. The group criticised Saleh’s government for its

alignment with the US and Saudi Arabia. Tensions grew into an armed insurgency in 2004 when Yemeni security forces attempted to arrest Hussein al-Houthi. His death in a battle later that year militarised and consolidated the movement under his family’s leadership, launching six successive wars against the Saudi-backed government between 2004 and 2010.

Prasanta Kumar Pradhan, research fellow and coordinator, West Asia Centre, at the Manohar Parrikar Institute for Defence Studies and Analyses (MP-IDSA), told *The Indian Express*: “During the six Saada Wars (2004-2010), the central Yemeni government struggled to suppress the insurgency. Saudi Arabia directly entered the conflict in late 2009 after Houthi fighters crossed into the border region of Jizan. The Saudi military relied on heavy airpower and artillery but faced operational challenges in the rugged mountainous terrain, previewing the tactical difficulties that would characterise future campaigns.”

Parallel state

Over a decade of territorial control, the Houthis transitioned from an insurgent militia into a governing authority that manages a highly lucrative war economy. Through systematic restructuring of the state, the group, which included institu-

The Houthi worldview

- The group’s worldview is articulated in its controversial slogan, the Sarkha: ‘God is great, death to America, death to Israel, a curse upon the Jews, victory to Islam’.
- Its modern ideology borrows heavily from global anti-imperialist rhetoric and Iran’s 1979 Islamic Revolution.
- The Houthis view themselves not merely as a local political faction but as a sovereign vanguard fighting against Western hegemony and monarchies in the neighbourhood.

tions and the private sector, established a comprehensive parallel economy.

Rana Friefer, writing for *Al Majalla*, notes that recent economic assessments indicate that the Houthi administration generates roughly \$2.5 billion annually through parallel tax and collection mechanisms. The Houthis are said to have prioritised the energy sector. Through state-run bodies like the Yemen Petroleum Company, the Houthis manage the distribution of fuel, divert shipments to black markets, and manipulate prices. The US Treasury Department has also accused the Houthis of generating more than \$2 billion annually through the illicit trade of Iranian oil.

‘Axis of Resistance’

While Houthis are generally dubbed as a direct Iranian proxy, some see the relationship through the prism of strategic alignment, technical dependency, and mutual benefit. Tehran provides support that elevates Houthi capabilities. The Houthis give Iran a strategic footprint along the Bab al-Mandeb and the southern flank of Saudi Arabia. This presence provides Tehran with asymmetric leverage over global trade routes.

Domestically, the Houthis exhibit autonomous decision-making. Despite depending on Iranian assistance, the Houthi leadership makes decisions based on do-

mestic needs and political survival.

A regional player

According to Pradhan, the Houthi capture of Mayun Island, along with their seizure of the strategically important port of Mokha along the Red Sea coast, has considerably strengthened their position along these critical maritime corridors.

“Much as Iran has demonstrated that it holds effective power over the Strait of Hormuz and the capacity to disrupt maritime security in its vicinity, the Houthis are now projecting themselves as the dominant force in the Bab el-Mandeb and the Red Sea... the growing instability in the Red Sea and the Bab el-Mandeb poses an increasingly complex security challenge for the Yemeni government, Saudi Arabia and for the wider regional order,” he said.

The Houthis’ participation in regional security dynamics complicates diplomatic engagement between the US and Iran. A major diplomatic hurdle is the disconnect between Iranian influence and true Houthi independence. Although Washington blames Tehran for supplying the Houthis with weapons, the group acts with substantial operational freedom — meaning Iranian pledges to reduce tensions do not guarantee Houthi restraint.

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B R Ambedkar, chairman of the Drafting Committee. WIKIMEDIA COMMONS

SECULARISM: Mahboob Ali Baig, who represented Madras, said his view was that the words “Civil Code” do not cover the “strictly personal law of a citizen” and as far as the Muslim community was concerned, their laws of succession, inheritance, marriage

and divorce “are completely dependent upon their religion.”

Syed Hussain Imam, Member from Bihar, said a secular State does not mean that “it is anti-religious... not irreligious but non-religious and as such there is a world of difference between irreligious and non-religious.” “...we should first await the coming of that event when the whole of India has got educated, when mass illiteracy has been removed, when people have advanced, when their economic conditions are better, when each man is able to stand on his own legs... Then, you can have uniform laws,” he said.

For the UCC

‘TYRANNY OF MAJORITY’: KM Munshi, a Congress Member from Bombay, questioned the argument that the enactment of a Civil Code would be tyrannical towards minorities. He said nowhere in advanced Muslim countries had the personal law of each minority been recognised “as so sacrosanct as to prevent the enactment of a Civil Code.” “When you

want to consolidate a community, you have to take into consideration the benefit which may accrue to the whole community and not to the customs of a part of it. It is not therefore correct to say that such an act is tyranny of the majority.”

ARTICLE 19: Munshi sought to clarify in regard to Article 19 that the House had already accepted the principle that if a religious practice covers a secular activity or falls within the field of social reform or social welfare, it would be open to Parliament to make laws about it without infringing this Fundamental Right of a minority.

SECULARISM: Munshi said the main question was whether the members of the Constituent Assembly were going to “consolidate and unify our personal law in such a way that the way of life of the whole country may in course of time be unified and secular.” “We want to divorce religion from personal law, from what may be called social relations or from the rights of parties as regards inheritance or succession. What have these things got to do with religion I

really fail to understand...” Munshi said.

WOMEN’S UPLIFTMENT: Munshi also sought to underline that a common code for the entire country was required to uplift the status of women in independent India.

Ambedkar on UCC

Responding to Hussain Imam, B R Ambedkar said India already had a uniform code of laws covering “almost every aspect of human relationship” in the form of a uniform and complete Criminal Code. The only province the Civil Law had “not been able to invade so far”, he noted, was Marriage and Succession. “It is this little corner which we have not been able to invade so far and it is the intention of those who desire to have Article 35 as part of the Constitution to bring about that change...” he said.

There were, to Ambedkar, other possibilities, in which a future Parliament “may feel the ground” by making adherence to a common civil code “purely voluntary”.

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ASIAN GAMES: SEPT 19 - OCT 4

POS	COUNTRY	G	S	B
1	China	32	13	8
2	Japan	11	16	19
3	S Korea	6	4	17
4	Kazakhstan	6	1	5
5	Thailand	4	1	1
8	India	1	4	2

Haul: 1 Gold

CRICKET TITLE

● The women's cricket team successfully defended its title, thrashing Sri Lanka by a record 147-run margin. It was the Indian contingent's first gold at this edition.

BADMINTON

● The women's team, spearheaded by PV Sindhu, went down 1-3 against Japan in the quarterfinals to crash out of medal contention.

● The men's team, on the other hand, blanked Japan 3-0 to enter the semifinals and guarantee themselves a podium finish.

WUSHU

● Hangzhou Asian Games
silver medallist Roshibina Devi
Naorem entered the
semifinals of the women's
60kg category, confirming
another medal for India.

DAY 5

Badminton: Men's team semifinal (11:30 AM)

● Medal assured, the Indian men take on China for a place in the final.

**Shooting: 10m Air Pistol
Women Team Final
(6:15 AM)**

● Esha Singh, Suruchi Phogat and two-time Olympic medallist Manu Bhaker will compete in hopes of getting India's first shooting gold in Asiad 2026.

Table Tennis: Mixed doubles Round of 32 (6:30 AM and 7:10 AM)

● Harmeet Desai will partner Yashaswini Ghorpade as they take on Maldives. Manush Shah and Diya Chitale will play Sri Lanka later in the day.

**Weightlifting: Women's
49kg Final (11 AM)
Women's 53kg Final
(1:30 PM)**

● The nation's most prolific weightlifter Mirabai Chanu will take the stage hoping to add a first Asian Games medal to her portfolio. Later, 2026 CWG medallist Gyaneshwari Yadav will take part in her first Asiad.

Boxing: Men's 80kg Round of 32 (8:30 AM onwards)

● 2026 CWG gold medallist Ankush Panghal will start his campaign with a bout against Bahrain's Hamsa Vogel.

